



2025:CGHC:1053-DB
NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

WA No. 890 of 2024

- 1 - Megha Jangel D/o Rajkumar Jangel Aged About 25 Years R/o Rhea Bird Of Paradise Near Anandam World City Kachna Raipur , Chhattisgarh
- 2 - Ankush Usendi S/o Ashok Usendi Aged About 30 Years R/o Makan No. 00, Sargipal Para Kondagaon (Chhattisgarh)
- 3 - Shail Kumari Jaiswal W/o Rajendara Jaiswal Aged About 34 Years R/o Hanshika Homes, Near Sai Anandam Marriage Hall, Uslapur, Bilaspur (Chhattisgarh)
- 4 - Rashi Kankarwal D/o Pankaj Kankarwal Aged About 28 Years R/o House No. 231, Ward No. 23, In Front Of Polytechnique Hostel Kaserpara, Chakradhar Nagar, Raigarh (Chhattisgarh)

--- Appellant(s)

versus

- 1 - State Of Chhattisgarh Through Secretary, Department Of Law And Legislative Affairs, Mantralaya Mahanadi Bhawan, Naya Raipur Chhattisgarh
- 2 - Registrar General High Court Of Chhattisgarh Bilaspur, District - Bilaspur (C.G.)

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3 - Chhattisgarh Public Service Commission Through Its Chairman,
North Block, Sector 19, Atal Nagar, Nava Raipur (Chhattisgarh)

4 - Exam Controller Chhattisgarh Public Service Commission, Through
Its Secretary, North Block, Sector 19, Atal Nagar, Nava Raipur
(Chhattisgarh)

5 - Prateek Kant S/o Ravi Kurre Aged About 34 Years R/o S-5 Shrishti
Samriddhi Colony Bodri, Bilaspur - Chhattisgarh (Performa
Respondent) (Petitioner No. 1 In The Writ Petition)

--- Respondent(s)

WA No. 892 of 2024

1 - Gayatri Sahu D/o Aswant Das Sahu Aged About 26 Years R/o In
Front Of Hardew Lala Mandir Tikrapara Raipur Chhattisgarh

2 - Priyanka Tiwari D/o Shri Ajay Tiwari Aged About 29 Years R/o G-
3/303, Gad Complex Kabir Nagar Raipur, Chhattisgarh

3 - K Ankit Pillay S/o Kishore Kumar Pillay Aged About 31 Years R/o
House No. 2630 Street - 8 New Shanti Nagar, Shankar Nagar District -
Raipur , Chhattisgarh

4 - Vidya Bharti D/o Shri Krishan Bharti Aged About 27 Years R/o
Bhathagaon (Kokadi) School Para, 51, Baloda Bazar District - Baloda
Bazar, Chhattisgarh

5 - Vandana Sahu D/o Chhannu Lal Sahu Aged About 28 Years R/o
Boriyakala Raipur, Dist.- Raipur, Chhattisgarh

6 - Smita Dansena D/o Sadanand Dansena Aged About 25 Years R/o
T.V. Tower Attarmuda, District - Raigarh, Chhattisgarh

Versus

- 1** - State Of Chhattisgarh Through Secretary Department Of Law And Legislative Affairs Mantralaya Mahanadi Bhawan Naya Raipur (C.G.)
- 2** - Registrar General High Court Of Chhattisgarh, Bilaspur District – Bilaspur
- 3** - Chhattisgarh Public Service Commission Through Its Secretary North Block Sector 19, Atal Nagar Naya Raipur (C.G.)
- 4** - Examination Controller Chhattisgarh Public Service Commission, Through Its Secretary North Block Sector 19, Atal Nagar Naya Raipur (C.G.)
- 5** - Suresh Kumar Chauhan S/o U.R. Chauhan Aged About 36 Years R/o H I G 49, Chhattisgarh Housing Board Colony Pirda - 2 Ring Road 3 Dist.- Raipur Chhattisgarh (Petitioner No. 1)
- 6** - Pragya Pandey D/o Jagdeesh Pandey Aged About 31 Years R/o Ward No. 3 Bilaigarh District - Sarangarh Bilaigarh Chhattisgarh (Petitioner No. 2)
- 7** - Bhavana Khatwani D/o Tarun Kumar Khatwani Aged About 28 Years R/o F- 10 In Front Of Doordarshan Office Dharampura 1 Jagdalpur Chhattisgarh (Petitioner No. 4)
- 8** - Richa Rennie Tigga D/o Alexander Tigga Aged About 26 Years R/o B/72 Avinash Capital Homes Phase 1 Saddu, Dist.- Raipur Chhattisgarh (Petitioner No. 5)

9 - Rameshwari Jangde D/o Tchhannulal Jangde Aged About 35 Years
R/o Civil Lines Vidyanagar, District - Khairagarh Chuikhadan Gandai,
Chhattisgarh, (Petitioner No. 6)

10 - Jyotiraditya Tiwari S/o Rakesh Tiwari Aged About 25 Years R/o
Chikhali Rajnandgaon District - Rajnanadgaon, Chhattisgarh,
(Petitioner No. 11)

11 - Chhaya Sahu D/o Kheluram Sahu Aged About 25 Years R/o Moti
Nagar Boriyakhurd, Dist.- Raipur, Chhattisgarh (Petitioner No. 12)

12 - Tripti Agrawal D/o Anand Agrawal Aged About 25 Years R/o House
No. 85 Ward 08, Purani Basti Kargi Road, Kota District - Bilaspur,
Chhattisgarh. (Petitioner No. 13)

13 - Shekhar Kanwar S/o Sanjay Kanwar Aged About 26 Years R/o
House No. 112 Shyhimudi Jailgaon Dist.- Korba, Chhattisgarh,
(Petitioner No. 15)

14 - Anamika Singh D/o Tribhuvan Singh Aged About 27 Years R/o
Mangla Chowk, Behind Laxmi Super Market, Dist- Bilaspur,
Chhattisgarh, (Petitioner No. 16)

15 - Unnati Verma D/o Kranti Kumar Verma Aged About 25 Years R/o
Kasdol Paras Nagar Sector 2, Baloda Bazar Bhatapara , C.G.
(Petitioner No. 17)

16 - Tejas Bhoi S/o Kailash Chandra Bhoi Aged About 28 Years R/o
Shyam Nagar Telibandha Near Maharana Pratap Udhyan District -
Raipur, C.G. (Petitioner No. 18)

17 - Hemant Prasad S/o Shri Kabir Prasad Aged About 24 Years R/o Karvahi Para Baheratoli Village Khajuriyadih P/o And P/s Chando District - Balrampur, C.G. (Petitioner No. 19)

18 - Snehlata Sonwani D/o Mahadev Sonwani Aged About 32 Years R/o Haldibadi Chirmiri District - Manendragarh Chirmiri Bharatpur, C.G. (Petitioner No. 20)

19 - Pragati Upadhayay D/o Drona Upadhayay Aged About 28 Years R/o Rajkishor Nagar, District- Bilaspur Chhattisgarh (Petitioner No. 21)

--- Respondent(s)

For Appellants(s)	:	Mr. Ishan Verma (in WA No. 890/2024) and Siddhant Das (in WA No. 892/2024), Advocates
For Respondent(s)/State	:	Mr. Shashank Thakur, Dy.A.G.
For Respondent / High Court	:	Mr. Anurag Dayal Shrivastava, Advocate
For Respondents (Writ Petitioners)	:	Mr. Anand Dadariya, Advocate

Hon'ble Shri Ramesh Sinha, Chief Justice

Hon'ble Shri Ravindra Kumar Agrawal, Judge

Judgment on Board

Per Ramesh Sinha, Chief Justice

08.01.2025

1. Heard Mr. Ishan Verma (in WA No. 890/2024) and Siddhant Das (in WA No. 892/2024), learned counsel for the appellants. Also heard Mr. Shashank Thakur, learned Deputy Advocate General for respondents / State, Mr. Anurag Dayal Shrivastava, learned counsel for respondent / High Court as well as Mr. Anand

Dadariya, learned counsel for respondents / writ petitioners.

2. Since both the appeals arise out of common judgment, they are being considered and decided together.
3. The appellants have filed these writ appeals against the order dated 02.12.2024 passed by the learned Single Judge in WPS. No.7677/2024 (***Prateek Kant and Others vs. State of Chhattisgarh and Others***) and in WPS No.6902/2024 (***Suresh Kumar Chauhan and Ors. Vs. State of Chhattisgarh and Ors.***) whereby, the learned Single Judge has dismissed the writ petitions filed by the writ petitioners.
4. Brief facts of the cases are that the appellants herein are the candidates who after qualifying Civil Judge Preliminary examination, 2023 appeared in the Civil Judge (Main) exam 2023. The appellants herein are aggrieved by the arbitrariness committed on the part of Chhattisgarh Public Service Commission (CGPSC) during the course of Civil Judge Junior Division (Main) examination dated 25.08.2024 in which Chhattisgarh Public Service Commission (CGPSC) without prior notification regarding change in the answering pattern, amended the Main examination answer sheet and its answering pattern and introduced a complete new Question cum Answer Booklet (QAB. That the last minute change in the answering pattern is an act done wrongfully and without any reasonable and probable cause and it has frustrated the very object of the process of selection for entry into

a Public Service which is to judge merit and secure the best and most suitable person for the service. In the advertisement published for Civil Judge examination there is/was no mention of such pattern being introduced i.e. the pattern of question cum answer booklet requiring the candidate to write the answers serially as such the same has been a material omission in the issuance of prior notification regarding last minute change in the answering pattern which is a glaring anomaly, in so far as the entire notifications issued by the Chhattisgarh Public Service Commission (CGPSC) in connection with the Civil Judge (Main) exam 2023 is concerned. The manner and fashion in which the Chhattisgarh Public Service Commission (CGPSC) conducted the mains exam caused confusion among the candidates in which unlike prior Main examination, new model of Question cum Answer Booklet (QAB) was introduced without any prior notification being issued and were given to the candidates along with the Main examination question paper. Even during distribution of question paper and answer sheet such instructions were not given by the invigilators in the examination hall, even the papers were distributed late without giving any reading time to at least go through the instructions. Due to this the appellants could not pre planned their roadmap of attempting the questions and completed their answer sheet in usual previous manner. The appellants are very much confident that they have given all the chances for getting the main examination cleared. But because of

the introduction of new pattern and as a result, the appellants answer sheets are either disqualified or not evaluated and they were declared unsuccessful vide Main exam result dated 08.10.2024. Such arbitrary action of the Chhattisgarh Public Service Commission (CGPSC) was challenged by the Appellants in writ petition numbered WPS 6902/2024, in which the Hon'ble Single Bench of this Hon'ble Court had passed the order dated 02/12/2024, dismissing the petition on erroneous grounds and without considering the facts and circumstances of the case.

5. Learned counsel for the appellant submits that the learned Single Judge has overlooked the fact that the action of the appellants were not any act of mistake or wrong resulting in blaming others for their own mistake (as quoted in the latin maxim). However the instant case evolves around a peculiar situation where the candidates/appellants have bonafidely and inadvertently followed the earlier pattern of the examination which was prevalent since last many years. The learned Single Judge has also lost sight of the fact that this abrupt change in examination pattern was never notified or informed. The candidates cannot be expected to emergently mould themselves to a newly constituted examination pattern which has been suddenly thrust upon them without any prior intimation or knowledge. Further, the learned Single Judge also failed to appreciate that as per the proviso to the sub rule 1 of rule 5 of the Recruitment Rules 2006 it was mandatory on the part of concerned respondent to consult the Hon'ble High Court and

State Government for prescribing the procedure and curriculum for holding the examination. However no document has been placed on record by the concerned respondent to show that the changes made in the answering pattern and the introduction of a complete new Question cum Answer booklet has been prescribed in consultation with the Hon'ble Court and State Government. The learned Single Judge failed to appreciate that, it was the duty of the Respondent CGPSC to issue the notification regarding the sudden change in the answering pattern and the introduction of a complete new Question cum Answer booklet as per the advertisement and also due to the fact that CGPSC had issued the same by way of corrigendum/notification in the year 2012-2013 when the same pattern was adopted by it in the State Services Exam. The learned Single Judge has failed to appreciate that the decision of the concerned respondent authorities in amending the answering pattern of Civil Judge (Main) exam 2023 in arbitrary manner without issuing any prior notification regarding the same fails to satisfy the test of consistency and predictability as it contravenes the established practice E. Because, the learned Single Judge has failed to appreciate that with regard to the gravity of the post of a Judge, it is desirable that the marking should be done on the merits and not on technical grounds that the answers were not written in their allotted space because selection based on merit, tested objectively is the essential foundation of essential Public Service and has also failed to

appreciate that the concerned respondent are well within their rights to change the pattern of conducting the examination, however such changes cannot be made arbitrarily without prior notification. Further, the process adopted by concerned respondents, conducted without prior notification of the answer pattern, cannot be allowed to sustain, as it fails to uphold the standards expected in a fair selection process. The learned Single Judge has failed to appreciate that the actions of the respondent Commission have infringed upon these fundamental rights by unfairly depriving the appellants of their right to fair and equitable treatment in the examination process. The same is violative of Article 14, 16 and 21 of the Constitution of India.

6. Learned counsel for respondents opposes the submissions made by the learned counsel for the appellants in these appeals and submits that the learned Single Judge after considering all the aspects of the matter has rightly dismissed the writ petition filed by the writ petitioner / appellant herein, in which no interference is called for. They further submit that so far as Civil Judge (Main) exam 2023 is concerned, the result for the same has already been announced and thereafter, the select list has also been published. Furthermore, the advertisement for the examination for the year 2024 has also been published. Hence, the present appeal has virtually become infructuous.
7. We have heard learned counsel for the parties and perused the impugned order and other documents appended with writ appeal.

8. From perusal of the impugned order, it transpires that the learned Single Judge while dismissing the writ petition has relied upon the judgment passed by the Hon'ble Supreme Court in the matter of ***Municipal Committee Katra & Others vs. Ashwani Kumar, AIR 2024 SC 2855*** and has held that the situation in hand is covered by the Latin maxim "*nullus commum dum capere potestde injuria sua propia*" which means no person can take advantage of his own wrong. It is the tendency of a litigant to blame others for his own mistake. Admittedly, one of the writ petitioners made a complaint before the Head of the Examination Center on the date of examination but no objection was raised with regard to the examination pattern and after a few days, objections were raised in this regard. Thus the objections with regard to examination pattern were afterthought and were raised at a belated stage.
9. Learned Single Judge further relied upon the judgment passed by the Hon'ble Supreme Court in the matter of the ***State of Tamil Nadu & Ors. Vs. G. Hemlathaa & Anr. (2020) 19 SCC 420*** and has held that the instructions given in the OMR sheet have the force of law and errors committed by the candidates in filling up the circles of the digits of the roll number leading to rejection of such OMR Sheets would lead to rejection of candidature of such candidates and no mandamus can be issued to correct the OMR Sheets manually. In the present case also, the petitioners ignored instructions and committed mistakes in writing answers therefore

no relief can be granted in their favor.

Learned Single Judge thereafter relied upon the judgment passed by the Hon'ble Supreme Court in the matter of ***Tej Prakash Pathak & Ors. vs. Rajasthan High Court & Ors. (2024) SCC Online SC 3184*** and has held that candidates have a right to know before the selection process commences, the standards/criteria on which they will be assessed/evaluated so that they could modulate their level of preparedness accordingly. It is further held that if eligibility cut-off marks are to be prescribed, it should be done before the test or the interview so that both the examinee and the examiner are aware as to how many marks would qualify a candidate for further consideration. It is also observed and held that the basis of the doctrine is that the 'rules of the game' must not be changed during the course of the game, or after the game is played. However, the present is not a case where the rules of the game have been changed midway, thus the aforesaid judgment would not apply to the facts of the present case.

10. Having gone through the submissions advanced by learned counsel for the parties and further considering the fact that the result for the Civil Judge (Main) exam 2023 has already been declared and thereafter the select list has also been published and furthermore, advertisement for exam for the year 2024 has also been released, there is no good ground raised by the appellants to interfere in the present matter. Further, having gone

through the finding recorded by the learned Single Judge while dismissed the writ petitions filed by the appellants herein, we do not perceive any error in the impugned order passed by the learned Single Judge so as to warrant any indulgence by this Court in the present intra court appeal.

11. Accordingly, the writ appeal being devoid of merit is liable to be and is hereby **dismissed**. No cost(s).

Sd/-

(Ravindra Kumar Agrawal)
Judge

Sd/-

(Ramesh Sinha)
Chief Justice

Manpreet